

seems to have been that such consents were in that case unnecessary.

**Remedy provided by Settled Land Act, 1884.** — It is not proposed, however, to discuss what consents were required under the section, as the inconveniences which arose from requiring any consents were found to be so serious, that the legislature intervened, and enacted by the Settled Land Act, 1884, sect. 6, sub-sect. (1), that in the case of a settlement within the meaning of sect. 63 of the Act of 1882, any consent not required by the terms of the settlement is not, by force of anything contained in that Act, to be deemed necessary to enable the trustees of the settlement, or any other person, to execute any of the trusts or \*powers [\*625] created by the settlement. And by sub-sect. (3), the section applies to dealings before, as well as after, the passing of the Act. But sect. 7 provides that, with respect to the powers conferred by sect. 63 of the Act of 1882, the following provisions are to have effect: —

(1). Those powers are not to be exercised without the leave of the Court.

(2). The Court may by order, in any case in which it thinks fit, give leave to exercise all or any of those powers, and the order is to name the person or persons to whom leave is given.

(3). The Court may from time to time rescind, or vary, any order made under this section, or may make any new or further order.

(4). So long as an order under this section is in force, neither the trustees of the settlement, nor any person other than a person having the leave, shall execute any trust or power created by the settlement, for any purpose for which leave is, by the order, given to exercise a power conferred by the Act of 1882.

(5). An order under this section may be registered and reregistered, as a *lis pendens*, against the trustees of the settlement named in the order, describing them on the register as “Trustees for the purposes of the Settled Land Act, 1882.”

(6). Any person dealing with the trustees from time to